

STATE OF NEW YORK

6956--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 18, 2025

Introduced by M. of A. FITZPATRICK -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend chapter 7 of the laws of 1955, relating to incorporating the Hauppauge Volunteer Exempt Firemen's Benevolent Association, and providing for its powers and duties, in relation to the name of such association and the use of foreign fire insurance premium taxes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Sections 1, 2 and 7 of chapter 7 of the laws of 1955,
2 relating to incorporating the Hauppauge Volunteer Exempt Firemen's
3 Benevolent Association, and providing for its powers and duties, are
4 amended to read as follows:

5 Section 1. Incorporation; membership. A membership corporation by the
6 name of "Hauppauge Volunteer Exempt [~~Firemen's~~ **Firefighter's** Benevolent
7 Association" is hereby created. It shall be composed of such persons
8 eligible to membership therein as hereinafter provided as shall (a)
9 notify the secretary of the Hauppauge fire department in writing prior
10 to the organization meeting of such corporation hereinafter provided for
11 their desire to become members, or (b) shall attend such meeting or an
12 adjournment thereof, and also such persons so eligible as may become
13 members of such corporation pursuant to its by-laws.

14 § 2. Persons eligible to membership. All persons who are now, or have
15 been, or who hereafter shall be volunteer members of Hauppauge fire
16 district fire department, or of any fire corporation in such fire
17 district, and all persons resident in such fire district or in territory
18 provided with fire protection by contract with such fire district who
19 are exempt volunteer [~~firemen~~ **firefighters** as defined by section two
20 hundred of the general municipal law, shall be eligible to membership in
21 the corporation hereby created; provided that any person who has been
22 expelled or removed for cause from membership in any fire company or

EXPLANATION--Matter in **italics** (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 department shall not be eligible to membership in such corporation.
2 Whenever a member who is not an exempt ~~[fireman]~~ volunteer firefighter
3 as defined by section two hundred of the general municipal law shall
4 move from such fire district or from territory provided with fire
5 protection as aforesaid or if the territory in which a member resides
6 shall no longer be provided with such fire protection, ~~[his]~~ such
7 member's membership in such corporation shall cease.

8 § 7. Precept for payment of foreign fire insurance premium taxes. Such
9 corporation shall collect and there shall be paid to it all taxes
10 imposed by section ~~[five hundred fifty-three]~~ 9104 of the insurance law,
11 for fire department use and benefit, upon premiums for insurance against
12 loss or damage by fire covering property situated within the territory
13 protected by the Hauppauge fire department, located partially in the
14 town of Smithtown and partially in the town of Islip, Suffolk county,
15 New York, or within any duly organized territory in which the Hauppauge
16 fire department is or may be obligated to render fire protection. The
17 officer of said corporation designated by its by-laws to collect and
18 receive the aforesaid tax shall have all the powers and be subject to
19 all the provisions of the insurance law, relating to treasurers of fire
20 departments. Such corporation shall also be entitled to receive a share
21 of the tax imposed by section ~~[five hundred fifty-four]~~ 9105 of the
22 insurance law, based upon the business written in the territory with
23 respect to which it is entitled to collect and receive the tax under
24 section ~~[five hundred fifty-three]~~ 9104 of the insurance law. Such taxes
25 shall only be used ~~[for the care and relief of disabled or indigent~~
26 ~~volunteer and exempt volunteer firemen and their families]~~ by the corpo-
27 ration in furtherance of its purposes as set forth in section three of
28 this act.

29 § 2. This act shall take effect immediately; provided however, that
30 the amendments to section 7 of chapter 7 of the laws of 1955 made by
31 section one of this act shall apply to taxes due on premiums received on
32 and after January 1, 2026.